



ARKA HEALTH, INC.

CONTINGENCY PLAN: DATA BACKUP, DISASTER RECOVERY & EMERGENCY MODE OPERATIONS

45 C.F.R. § 164.308(a)(7); Availability criteria, SOC 2 (A1)

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1. PURPOSE

This Plan implements the Contingency Plan standard, 45 C.F.R. § 164.308(a)(7), establishing the procedures by which ARKA Health, Inc. responds to events that damage or render unavailable systems containing ePHI — including natural disaster, infrastructure failure, ransomware, and vendor outage — while preserving the confidentiality and integrity of ePHI in emergency operation.

2. RECOVERY OBJECTIVES

System class	RTO	RPO	Criticality
ARKA Platform application tier (stateless services)	4 hours	0 (redeploy from artifacts)	Critical
Primary transactional database (tenant data; ePHI when in production service)	12 hours	≤ 15 minutes (PITR)	Critical
Authentication / identity services	4 hours	≤ 15 minutes	Critical
Analytics and reporting stores (de-identified)	72 hours	24 hours	Standard
Corporate SaaS (email, documents)	Vendor-managed	Vendor-managed	Standard

The objectives above are set to satisfy the seventy-two (72)-hour restoration expectation for critical systems reflected in the 2025 Security Rule rulemaking, with substantial margin for the platform tier. Criticality assignments constitute the applications-and-data criticality analysis required by § 164.308(a)(7)(ii)(E).

3. DATA BACKUP PLAN

1. Transactional databases maintain continuous write-ahead-log archiving with point-in-time recovery and daily full snapshots; snapshots are encrypted with keys distinct from production keys (ARKA-SEC-004, § 3(d)) and replicated to a second geographic region.
2. Backup copies are immutable for their retention window (thirty-five (35) days rolling, plus monthly archival snapshots retained twelve (12) months) and are inaccessible to the credentials that operate production workloads, so that a compromise of production cannot encrypt or delete backups.
3. Source code, infrastructure-as-code definitions, and deployment configuration are mirrored across the managed source-control provider and exportable archives, such that the entire platform is reconstructable from versioned artifacts.
4. **Restoration testing.** A database restore to an isolated environment shall be executed and documented at least quarterly, recording elapsed time against RTO and data loss against RPO; an annual full-environment recovery exercise shall reconstruct the platform from artifacts and backups alone.

4. DISASTER RECOVERY PROCEDURE

Upon declaration of a disaster by the Security Officer or Chief Executive Officer: (a) the incident bridge is opened and the communication tree activated; (b) recovery proceeds in dependency order — identity, data tier, application tier, integrations — using region failover or rebuild-from-artifact paths as the event

dictates; (c) Customers materially affected are notified within four (4) hours of declaration with an initial assessment and ongoing status cadence; and (d) a post-event review follows ARKA-SEC-006, § 4(e). Where the event involves suspected compromise, restoration shall use snapshots predating the compromise window and shall not reintroduce affected artifacts.

5. EMERGENCY MODE OPERATION

During contingency operation, the protections of the ARKA-SEC series remain in force: emergency access follows the break-glass procedure (ARKA-SEC-003); encryption and logging may not be disabled to expedite recovery; and any temporary control deviation must be recorded as an exception with an expiration not later than the close of the event. The clinical posture of the ARKA Platform — decision support that never blocks or places orders — means platform unavailability degrades to the Customer’s standard of care without creating a patient-safety dependency; Customers are advised of this design in onboarding materials.

6. TESTING AND REVISION

This Plan shall be tested annually at minimum (tabletop plus the technical exercises of Section 3(d)), and revised within thirty (30) days of any test or actual event that reveals a deficiency, per § 164.308(a)(7)(ii) (D).

DOCUMENT CONTROL & REVISION HISTORY

Version	Date	Author / Reviewer	Description of Change
0.9	May 22, 2026	A. Kanna (drafting); external review pending	Initial draft circulated for internal review and counsel comment.
1.0	June 10, 2026	A. Kanna, Privacy & Security Officer	Adopted as effective policy of ARKA Health, Inc. by written approval of the undersigned officer.

ADOPTION AND APPROVAL

The undersigned, being the duly designated Privacy Officer and Security Officer of ARKA Health, Inc., hereby adopts this document as an official policy of the Company, effective as of the Effective Date set forth on the cover page hereof. This document shall be reviewed no less frequently than annually and upon any material change to the Company’s operations, information systems, or applicable law, and may be amended only in accordance with ARKA-GOV-001 (Information Security & Compliance Program Charter).

ARKA HEALTH, INC.

By: _____

Name: Arri Kanna

Title: Founder & Chief Executive Officer; Privacy & Security Officer

Date: June 10, 2026